

law immunities of judges and grand jurors acting within the scope of their duties.²⁰ These include concern that harassment by unfounded litigation would cause a deflection of the prosecutor's energies from his public duties, and the possibility that he would shade his decisions instead of exercising the independence of judgment required by his public trust. One court expressed both considerations as follows:

"The office of public prosecutor is one which must be administered with courage and independence. Yet how can this be if the prosecutor is made subject to suit by those whom he accuses and fails to convict? To allow this would open the way for unlimited harassment and embarrassment of the most conscientious officials by those who would profit thereby. There would be involved in every case the possible consequences of a failure to obtain a con-

²⁰ The immunity of a judge for acts within his jurisdiction has roots extending to the earliest days of the common law. See *Floyd v. Barker*, 12 Coke 23, 77 Eng. Rep. 1305 (1608). Chancellor Kent traced some of its history in *Yates v. Lansing*, 5 Johns. 282 (N. Y. 1810), and this Court accepted the rule of judicial immunity in *Bradley v. Fisher*, 13 Wall. 335 (1872). See n. 12, *supra*. The immunity of grand jurors, an almost equally venerable common-law tenet, see *Floyd v. Barker*, *supra*, also has been adopted in this country. See, e. g., *Turpen v. Booth*, 56 Cal. 65 (1880); *Hunter v. Mathis*, 40 Ind. 356 (1872). Courts that have extended the same immunity to the prosecutor have sometimes remarked on the fact that all three officials—judge, grand juror, and prosecutor—exercise a discretionary judgment on the basis of evidence presented to them. *Smith v. Parman*, *supra*; *Watts v. Gerking*, *supra*. It is the functional comparability of their judgments to those of the judge that has resulted in both grand jurors and prosecutors being referred to as "quasi-judicial" officers, and their immunities being termed "quasi-judicial" as well. See, e. g., *Turpen v. Booth*, *supra*, at 69; *Watts v. Gerking*, *supra*, at 661, 228 P., at 138.